



CHAPTER cxxx.

An Act to confirm a Provisional Order made by the Board of Trade under the General Pier and Harbour Act 1861 relating to Wexford. A.D. 1904.
[22nd July 1904.]

WHEREAS a Provisional Order made by the Board of Trade under the General Pier and Harbour Act 1861 is not of any validity or force whatever until the confirmation thereof by Act of Parliament : 24 & 25 Vict.
c. 45.

And whereas it is expedient that the Provisional Order made by the Board of Trade under the said Act and set out in the schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order set out in the schedule to this Act shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force. Confirmation
of Order in
schedule.

2. This Act may be cited as the Pier and Harbour Order Confirmation (No. 1) Act 1904. Short title.

[Ch. cxxx.] *Pier and Harbour Order Confirmation* [4 EDW. 7.]
(No. 1) Act, 1904.

A.D. 1904.

SCHEDULE.

WEXFORD HARBOUR.

*Wexford. Provisional Order for amending the Wexford Harbour Act 1874
in regard to the Election of certain Commissioners.*

Short title. 1. This Order may be cited as the Wexford Harbour Order 1904.

Commence-
ment of Order. 2. This Order shall come into force upon the day when the Act
confirming this Order is passed and that day is in this Order referred to
as "the commencement of this Order."

Interpretation. 3. In this Order unless there be something in the subject or context
repugnant to such construction—

Words and expressions to which meanings are assigned by the Wexford
Harbour Act 1874 as amended by the Wexford Harbour Order 1886
have the same respective meanings ;

The expressions "the Act of 1874" and "the Order of 1886" mean
respectively the Wexford Harbour Act 1874 and the Wexford Harbour
Order 1886 ; and

The term "Commissioner" means a Commissioner under the Act of
1874.

Declaration of
candidate's
qualification to
be deposited
before election. 4. After the commencement of this Order no person shall be elected a
Commissioner by the registered shipowners of the Port of Wexford or by
the qualified electors under the Act of 1874 as amended by the Order of
1886 unless at the same time as his name is given in to the Secretary of
the Commissioners or his deputy as a candidate for election in pursuance of
section 21 of the Act of 1874 there is deposited with such Secretary or his
deputy at his office in the town of Wexford a statutory declaration by such
candidate or by some person on his behalf (such person being entitled to vote
at the election of Commissioners) that such candidate is duly qualified to be
elected a Commissioner.

Form of de-
claration. 5. The declaration shall be made before a justice of the peace or other
person by law authorised to administer oaths and shall be in one or other
of the following forms as the case may require (that is to say) :—

(1) I A.B. of

do solemnly and sincerely declare that I am a candidate for
election as a Wexford Harbour Commissioner by the registered

[4 EDW. 7.] *Pier and Harbour Order Confirmation* [Ch. cxxx.]
(No. 1) Act, 1904.

shipowners of the Port of Wexford (*or*) by the qualified electors (*as the case may be*) and am resident within the town of Wexford or within ten statute miles measured along a public road from the Court House of the said town and am and at the date of the election of Commissioners to be held on the _____ day of _____ next will have been for the twelve preceding months rated to the relief of the poor in respect of premises within that distance of the annual value of twenty pounds or upwards or am seised or possessed of real or personal estate or of both of the clear value of five hundred pounds above what will satisfy my debts :

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And I make this solemn declaration conscientiously believing the same to be true and by virtue of the provisions of the Statutory Declarations Act 1835 :

or

(2) I A.B. of

do solemnly and sincerely declare that C.D. of

who is a candidate for election as a Wexford Harbour Commissioner by the registered shipowners of the Port of Wexford (*or*) by the qualified electors (*as the case may be*) is resident within the town of Wexford or within ten statute miles measured along a public road from the Court House of the said town and is and at the date of the election of Commissioners to be held on the _____ day of _____ next will have been for the twelve preceding months rated to the relief of the poor in respect of premises within that distance of the annual value of twenty pounds or upwards or is seised or possessed of real or personal estate or of both of the clear value of five hundred pounds above what will satisfy his debts :

And I make this solemn declaration conscientiously believing the same to be true and by virtue of the provisions of the Statutory Declarations Act 1835.

6. After the commencement of this Order no person elected as a Commissioner by the registered shipowners or by the qualified electors shall be required after election to make any declaration as to his qualification before acting as a Commissioner but nothing herein contained shall render unnecessary any declaration by such person for the due performance of his duties as a Commissioner required by the Act of 1874 or any Act incorporated therewith.

Further declaration of qualification unnecessary after election.

7. If the declaration of qualification required by this Order to be deposited with the Secretary of the Commissioners or his deputy is not in the case of any candidate for election duly deposited in accordance with this Order any nomination of such person as a candidate for election and any votes given in his favour shall be void.

Failure to deposit declaration to render candidature void.

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Saving of existing
provisions as to
elections.

8. Except as hereinbefore expressly provided all the provisions of the Act of 1874 and the Order of 1886 shall remain in force.

Order not to
affect previous
elections.

9. Nothing in this Order shall affect or invalidate the election of any Commissioner at any election held previously to the commencement of this Order.

Costs of Order.

10. The costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise incurred by the Commissioners in relation thereto shall be paid by the Commissioners.

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